Roe

By Lisa Loomer

SARAH: **(Pgs 11-13)** *(Lights come up on Sarah Weddington, early 70s)* Good evening. My name is Sarah Weddington. I was the lawyer who argued Roe v. Wade. *(From Loomer's revised Prologue 2022)* And tonight, I deliver its obituary. *(with great passion)* Every day new abortion laws are written in our country. But all of these laws tell a woman the same thing: You have no right to control over your own body. We, the government, have that right. We have the right to cause you economic or psychological harm . . . We will incarcerate any doctor who seeks to help you . . . And we don't care if you were incested or raped. *(pained)* You know, I always wonder . . . We argue about Roe, some of us vote solely on this issue . . . But how many of us even know what was said in the case? Well, I'd like to tell you the story of ***Roe***. And since ***history*** is the result of shared experience. . . And is a reflection of multiple points of view -- that are affected by race, religion, gender, sexuality, and class . . . I think it's essential that ***all*** persons involved in ***Roe*** be here to testify!

LINDA: *(passionately)* Linda Coffee for the plaintiff -- the ***truth*** is, it's about choice!

FLOWERS: *(outraged)* Robert Flowers, representing the great State of Texas -- it's about murder pure and simple-

FLIP BENHAM: Flip Benham, head of Operation Rescue -- the ***truth*** is, it's ***not*** your body, so it's ***not*** your choice!

RONDA: Can you see the little hands, the precious feet?

Suddenly, the one woman who has not spoken, lets out a whistle, and the others fall silent. Norma, 69, steps forward to the audience.

NORMA: Hey, y'all, I'm Norma McCorvey. I was the plaintiff. I ***Am*** Roe! *(Sarah looks at Norma. Norma looks at Sarah and smiles)* Well, sugar, how 'bout this? How 'bout you tell your story, I tell mine?

SARAH: *(after a beat; with dignity)* Norma? As long as we get to the ***truth****?* Fine.

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INTRODUCTION

Roe v Wade is not just a case. It's not just a ruling. This is what happens when a country argues over who gets to choose and who must pay the price.

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NORMA: (Pg 14-15) Okay y'all, Dallas, 1970. I was a bartender at the Red Devil – Oh – did I mention this was a Girls' Bar? (begins to serve drinks to a woman sitting at the bar) Aileen!

AILEEN: You seen your doctor?

NORMA: Know what that doctor told me? "See a lawyer." Adoption lawyer. [But] I was workin' the bar tonight, talkin' to a customer, know what she told me? Did you know there is a way for me to be ***not*** pregnant, Aileen?

AILEEN: *(laughs)* You never heard of an abortion?

NORMA: Where I come from? Louisiana? A voodoo woman gives you something to drink, says some mumbo jumbo . . . didn't work when my mom got knocked up with me, so how would I know? Can you give me the name of a doctor?

AILEEN: Not ***that*** kind of doctor. It's against the law.

NORMA: You're a nurse, Aileen – All I'm askin' for's a name! *(steps out of scene to speak to the audience)* (Pg 16) And while I was raisin' hell in Dallas . . .

SARAH: In Austin . . .

JUDY: (Pg 19) Sarah has been doing legal research for an underground referral service so women can get safe abortions and steer clear of the back-alley guys.

SARAH: We've all heard the horror stories about illegal abortion. 5,000 women dying a year!

JUDY: We all agree the law has to change. And in order to do that in Texas, someone has to challenge the law that makes abortion ***illegal***. I think that should be Sarah.

SARAH: Are you crazy? I'm only a couple years out of law school! I've never tried a ***contested*** case!

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NORMA: (Pg 37) *(interjects from the sidelines)* Your first case? Gee, no one bother to tell me!

SARAH: (Pg 20-21) *(beat)* Look, I know you're right, Judy, someone should do this . . . *(with increasing emotion)* I met a girl last week. Willa. Fifteen. She took a bus to Dallas, was met by a guy who blindfolder her and drove her to a man who did abortions in his basement. $800 at the door. He ordered her to take off all her clothes and lie down on a table. (beat) He raped her. And she felt that, if she wanted the abortion, she'd better just let him. She was fifteen! No anesthesia. He inserted a coat hanger, jabbing it around till he pierced the fetal sack. *(continues with passion)* And some women just do it themselves! Lysol, turpentine, telephone wire, broken Coke bottles. No woman should have to go through these things!

JUDY: You just argued yourself into taking the case.

******* Doctor's Office*******

NORMA: Look, I been to a place in Oak Cliff. Blood all over the floor, roaches . . . And the smell.

DOCTOR: *(patiently)* Norma, I believe I told you "no" on the phone.

NORMA: You delivered both my babies, you had plenty of business offa me. If you can't do it, gimme the name of someone who can.

DOCTOR: Maybe you should have thought about consequences before you got pregnant for a third time? I am not in the business of killing babies! Shame on you for even – do you understand that any doctor who would do such a thing would go to jail? Either raise this baby yourself *(with disdain)* as an unmarried woman or find your child some decent parents.

****** Pizza Parlor *******

TOGETHER: (Pg 24-27) *(to audience)* And the first meeting on Roe v Wade took place in Columbo's Pizza Parlor on Mockingbird Lane.

NORMA: in Dallas.

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SARAH: *(to audience)* Linda Coffee was in my class at law school, and I knew I'd need a huge amount of help. *(greeting Norma)* Hi! You must be Norma! I'm Sarah Weddington. So glad to meet you! *(she notices the bandanna wrapped above one of Norma's knees)* I like your bandanna.

NORMA: Oh, that just means I don't have a girlfriend. *(enjoying this)* I'm a lesbian?

SARAH: Of course. How many months pregnant are you, Norma?

NORMA: Uh, 'bout two and a half?

LINDA: *(steps out of scene)* I'd just like to say something about "history" here. We want to give a fair account of what happened here. Norma, in her book, says she was 2 ½ months pregnant. And Sarah, in your book, it was more like 4 . . . Well, how pregnant was she?

SARAH: You were at least 4 months –

NORMA: 2 Months! *(to audience)* Alternative facts –

LINDA: *(to audience)* My point is that it's really hard to talk objectively about history, about the "truth." Let's continue.

SARAH: **(Pg 28)** Do you have family?

NORMA: Got a mother! But we never been close *(laughs)* Hell, I though my name was "Ugly Stupid" 'fore I knew what the wors meant. I still can't do nothin' right for that **woman.** And I tried 'cause she's got my daughter –

SARAH: You have – a daughter?

NORMA: Melissa. She's five.

SARAH: I see. And you say your mother has custody?

NORMA: I say my mother stole Melissa. Told me she was gonna put my baby on her health insurance. Next thing I know: "You got five minutes to pack up your shit 'cause you just gave up your daughter." *(awkward pause)*

SARAH: **(Pg 30)** We need a pregnant woman who wants an abortion to challenge the Texas Law. Do you want an abortion, Norma?

NORMA: Well, yeah! I'm not here for the pizza!

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SARAH: You wouldn't have to use your own name. Usually, people use "Jane Doe" but there's a Mary Doe in a related case, we could use . . . Jane Roe? You wouldn't even have to appear in court.

NORMA: So I'm Jane Roe? And then I could get my abortion?

SARAH: *(beat, carefully)* Norma. The law takes time I can only promise you that we will do our best. *(both step out of scene and speak the audience)*

NORMA: **(Pg 32)** She ***let me believe*** I could get my abortion.

SARAH: Norma McCorvey was in her second trimester when we met. She became a plaintiff in the case so that ***future*** generations of women would have the right she was denied. *(Norma starts to pound her very pregnant stomach)*

MCCLUSKEY: **(Pg 33)** *(to audience)* Despite her efforts to self-abort, Norma gave birth that summer. **(Pg 22)** [I'm] Henry McCluskey, a lawyer who specialized in adoptions and, like Norma, also gay. People like us generally hid their sexual orientation in those days.

NORMA: **(Pg 34)** *(deadened; to no one)* They gave me a shot to dry up my milk. But the nurse f***ed up and brought it to me at feeding time. *(pained she turns away)*

MCCLUSKEY: *(taking the baby in his arms)* I arranged the adoption – a closed adoption. No one's heard anything about the child known as the Roe Baby since. *(beat)* Oh – it was a girl.

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SARAH: **(Pg 41)** *(to audience)* Finally . . . October 1972 – (Pg 46) the *Supreme Court* sent the decision. . .

JUSTICE BLACKMUN: **(Pg 49)** *(to audience)* Justice Harry Blackmun. According to my obituary, I would receive hate mail for the rest of my life. **(Pg 48)** *(turns to the order at hand – the Supreme Court's ruling)* The Court has recognized that a right of privacy does exist under the Constitution. And is broad enough to encompass a woman's decision whether or not to terminate her pregnancy.

SARAH: *(reading the ruling in her office)* Yes!

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JUSTICE BLACKMUN: Each state may also properly assert important interests in protecting potential life.

SARAH: *(to Blackmun)* To be clear . . . the fetus is "potential" life?

JUSTICE BLACKMUN: The compelling point is viability. When the fetus has the capability of life outside the mother's womb. The state may ***prohibit*** abortion, from the ***second trimester*** on except when it is necessary . .

SARAH: *(reading)* "To preserve the life or health of the mother." *(To Blackmun)* Damn! State regulation could be a big problem in the future!

JUSTICE BLACKMUN: The word "person," as used in the 14th Amendment, dos ***not*** include the unborn. *(exits)*

NORMA: **(Pg 49)** *(with wonder)* They passed that law – that Roe versus Wade?

NORMA AND SARAH: *(Norma speaks it to herself, Sarah aloud)* The right to choose is the law of the land!

SARAH: *(to audience, triumphant)* And that was the case. Now let's talk about what's happened to the law since. **(Pg 50)** The 80s – Reagan says he wants to "rectify the tragedy of Roe v Wade." He says that, over his dead body will a pro-choice Judge ever be appointed to the Supreme Court.

NORMA: **(Pg 51)** I see all them college-girl feminists on the TV going on about Roe? I mean, shit ***I am Roe*** – and I never got nothin' out of it, not an abortion, nothing'!

FLIP BENHAM: **(Pg 56)** *(to audience)* Flip Benham, Head of Operation Rescue. *(turns to confront Norma)* **(Pg 66)** Norma McCorvey? How does it make you feel that 35 million babies have died because of you? **(Pg 67)** Only sin will prevent you from entering the Kingdom of God, Miss Norma.

NORMA: That what you Rescuers told that abortion doctor in Florda 'fore you put a bullet in his head.

RONDA: **(Pg 68-69)** *(outside an abortion clinic, perhaps holding a picket sign; introduces herself to audience)* Ronda Mackey – Operation Rescue volunteer. *(steps in front of a woman headed to an abortion clinic)* Oh, hon, you don't want to go in there. Let me

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show you something *(shows photos)* This is a 9-week-old baby. He's smiling, can you see that. *(vehemently)* No one could tell me that this was a "fetus" and not a human being. Hon. . . Your child is a gift!

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SARAH: (Pg 70) Decades ago, the Supreme Court gave American women the legal right to choose. But the fate of Roe depends on who is on the Supreme Court at the time.

PRO-LIFE WOMAN: (Pg 89) You liberals – the same folks who stood in front of schools to protest segregation, to protect the rights of black children? Can't you see where' standing in front of clinics to protect the rights of all babies.

SARAH: If abortion goes against your beliefs, don't have one! Just don't try to force your beliefs – and your choice – on everyone else.

PRO-LIFE WOMAN: (Pg 90) A child is not a ***choice***!

SARAH: (Pg 94-95) In 2016, a pro-choice woman ran for president. Won the popular vote. . . and lost the election. In 2018, a president who's vowed to overturn Roe made his second appointment to the Supreme Court.

NORMA AND SARAH: No matter what else I have done with my life . . . My obituary will always read

SARAH: *(Proud)* She was the lawyer who argued Roe v Wade!

NORMA: *(Broken)* She was Jane Roe.

SARAH: As for the law itself? . . . .

CLOSING

TOGETHER: *On June 24, 2022, the U.S. Supreme Court eliminated the constitutional right to obtain an abortion -- casting aside 49 years of precedent that began with Roe v. Wade.*

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SOURCE INFORMATION

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AWARD HISTORY

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Obituary of Sarah Weddington:
https://law.utexas.edu/news/2021/12/26/in-memoriam-sarah-weddington-67-roe-v-wade-attorney-and-womens-rights-activist-dies-at-76/

Additional information/interview with Norma McCorvey:
https://www.npr.org/2022/10/13/1128005826/the-forgotten-story-of-jane-roe-who-fought-for-and-then-against-abortion-rights

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